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#	Case Name	Tentative
1	2024-1428404 Morton vs. OC Grooming	Defendant OC Grooming's Demurrer to Plaintiff Robert Norton's Complaint is sustained with 20 days leave to amend. Plaintiff shall have 20 days after notice of this ruling to file an amended complaint. Here, the Complaint is uncertain. There are no causes of action identified, no prayer for relief asserted, and difficult to read handwritten allegations. The Court cannot decipher what claims Plaintiff is trying to allege and Defendant cannot reasonably respond. The Court notes that to be acceptable for filing, a complaint must be drafted in accordance with rules applicable to pleadings generally. (See CRC 2.100-2.119.) A complaint must contain a "statement of the facts constituting the cause of action, in ordinary and concise language", and a "demand for judgment". (CCP § 425.10). Each cause of action (or affirmative defense) should be separately stated, must be separately numbered, and must identify the parties asserting the claim and against whom it is asserted. (CRC 2.112.) The court further notes that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th

		1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal Rules of Court, rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) Defendant is ordered to serve notice of this ruling.
2	2024-1396986 Price vs. City of Anaheim	Specially Appearing Defendant National Core’s unopposed motion to quash service of the summons and complaint is GRANTED. “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, “the burden is on the plaintiff to prove the existence of jurisdiction by proving, <i>inter alia</i>, the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [trial court erred in denying motion to set aside default judgment where plaintiff’s attempted service of process did not substantially comply with requirements for substitute service]; (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1160 [“It was incumbent upon plaintiff, after the filing of defendant's motion to quash, to present evidence discharging her burden to establish the requisites of valid service on defendant”].) Here, Defendant presents evidence that it is not a legal entity and therefore does not exist. (Ortiz Decl., ¶¶ 2-3, Exs. A and B.) Because it does not exist, CSC Lawyers Incorporating Service – the company who purportedly accepted service on it’s behalf, could not accept service. (Id. at ¶¶ 5-6, Ex. D.) Thus, no service can be effectuated upon it. Further, as the motion is unopposed, Plaintiff has failed to meet her burden to prove the existence of jurisdiction on this moving defendant. Service of the summons and complaint on National Core, as reflected in the proof of service filed on 9/20/24 under ROA 17 is hereby QUASHED. Lastly, the Court notes that Hermosa Village Apartments has filed a nearly identical motion set for hearing on 1/15/24. The court <u>strongly encourages</u> the parties to work out their differences informally to avoid the necessity for court intervention, which lessens the burden on the Court and reduces unnecessary expenditure of resources by